



1971200602

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12/04/1997 8:59 AM
ORD \$12.00
Whatcom County, WA

Request of: FERNDALÉ CITY OF

Upon recording, please return to:

City of Ferndale
P O Box 936
Ferndale, Washington 98248

DOCUMENT TITLE: AN ORDINANCE OF THE CITY OF FERNDALÉ, WASHINGTON, ANNEXING APPROXIMATELY 103.6 ACRES OF PROPERTY LOCATED GENERALLY NORTH OF DOUGLAS ROAD AND EAST OF CHURCH ROAD, LYING BOTH NORTH AND SUTH OF THE MOUNTAIN VIEW ROAD

REFERENCE NUMBER OF RELATED DOCUMENT: #1154

GRANTOR: ~~N/A~~ City of Ferndale

GRANTEES: ~~N/A~~ Public

ADD'L PARTIES: N/A

ABBREVIATED LEGAL DESCRIPTION:

PORTIONS OF LAND IN THE NW QTR OF SEC 30, TWNShP 39N, RNG 2E OF WM AND
PORTIONS OF LAND IN THE SW QTR OF SEC 19, TWNShP 39N, RNG 2E OF WM

ADDITIONAL DESCRIPTION ON PAGES 1& 2 OF DOCUMENT

ASSESSOR'S TAX PARCEL NUMBERS IN SECTION 19: 390219 060 054

390219 066 014

390219 095 011

ASSESSOR'S TAX PARCEL NUMBERS IN SECTION 30: See Exhibit 'A'(attached)

NUMBER OF PAGES INCLUDING THIS COVER SHEET:

WHATCOM COUNTY

AUDITOR'S NOTE:

Complete Notary

Omitted

Exhibit 'A'

Parcels included in annexation Ord. #1154, in Section 30 are as follows:

390230	050	496
390230	072	512
390230	084	510
390230	101	514
390230	072	493
390230	089	493
390230	121	491
390230	120	451
390230	150	504
390230	170	503
390230	180	495
390230	175	445
390230	182	424
390230	218	432
390230	211	414
390230	225	440
390230	217	397
390230	225	410
390230	083	406
390230	056	394
390230	025	386

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ORDINANCE #1154

AN ORDINANCE ANNEXING APPROXIMATELY 103.6 ACRES OF PROPERTY LOCATED GENERALLY NORTH OF DOUGLAS ROAD AND EAST OF CHURCH ROAD, LYING BOTH NORTH AND SOUTH OF THE MOUNTAIN VIEW ROAD.

WHEREAS, the Ferndale City Council accepted a notice of intention to initiate annexation proceedings, during a public hearing on November 18, 1996, from Rod Graber, Al Leishman and others who are owners of 103.6 acres of property proposed for annexation; and

WHEREAS, at that November 18, 1996 meeting, the Ferndale City Council determined that a petition would be accepted; that the City would require the annexed property to assume its pro rata share of the existing city indebtedness; and that simultaneous adoption of zoning regulations would be required; and

WHEREAS, the Ferndale Planning Commission reviewed the proposal in a public hearing on September 18, 1996 and recommended a zoning plan for the property to take effect upon annexation of the area; and

WHEREAS, a legally sufficient petition was received by the City of Ferndale and was certified as sufficient on March 3, 1997; and

WHEREAS, the proposed annexation area is located within the interim urban growth area boundaries as adopted by ordinance by the Whatcom County Council on January 23, 1996; and

WHEREAS, the City Council of the City of Ferndale held a public hearing on March 17, 1997, to consider the annexation and adopted Resolution #97-3-17 at the conclusion of the hearing, accepting the petition for annexation; and,

WHEREAS, the Whatcom Boundary Review Board reviewed the proposed annexation and did not take action to invoke jurisdiction;

NOW, THEREFORE, the City Council of the City of Ferndale does ordain as follows:

Section 1: The zoning designation for this property shall be a combination of Residential Single Family - RS 8.5, Residential Single Family - RS 6.5, Residential Office - RO and Residential Multi-Family RM 1.5 as depicted on the attached map, labeled Exhibit A - Zoning.

Section 2: There shall be required the simultaneous adoption of the City's Comprehensive Land Use Plan, as adopted by the City of Ferndale on October 7, 1996, which is consistent with the zoning designations as listed in Section 1, above.

Section 3: The annexed property shall assume its pro rata share of existing city indebtedness.

Section 4: The Ferndale City Council hereby annexes that property described as follows:

Those unincorporated lands located in the Northwest 1/4 of Section 30, Township 39 North, Range 2 E.W.M. that are located North and West of the Douglas road Right-of-Way, excepting Lots 1, 2, 3 & 4 of the Pheifer Short Plat; together with those

unincorporated lands located in the Southwest 1/4 of Section 19, Township 39 North, Range 2 E.W.M., lying North of Mountain View Road and East of Church Road.

Subject to easements, restrictions, reservations and provisions of record, if any.

Including those portions of the Mountain View Road and Douglas Road Rights of Way that adjoin the above described properties.

Situate in Whatcom County, Washington.

Section 5: The City is not by this action requiring the alteration of the current open space taxation status of the property currently owned by James Summers under Whatcom County Assessor's Parcel Number 390219 060054.

Section 6: This ordinance shall become effective on the sixth day after publication as set forth by state law.

Approved by the City Council and signed by the Mayor this 3rd day of June, 1997.



Norm Robertson, Mayor

ATTEST:


R.D. Signett, Clerk/Treasurer

June 11, 1997

Publication Date

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